



ASIC
Australian Securities &
Investments Commission

**Australian Securities
and Investments Commission**

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www.asic.gov.au

Mr Richard McLean

Via email: barrandodger@gmail.com

23 February 2022

Dear Mr McLean

**Application refused – Ministerial consent required for potentially undesirable
business name 'WWW.PISSOFFTHESHIT.COM.AU'**

I refer to your application received on 21 February 2022, to register the proposed business name 'WWW.PISSOFFTHESHIT.COM.AU' (**the proposed Business Name**).

Your application to register the proposed Business Name has been refused because the name contains words, abbreviations or an expression which may be offensive to members of the public. Accordingly, the name may be undesirable.

Where a business name is undesirable, the consent of the Minister is required before the name can be registered. If you choose to apply for Ministerial consent and your application is successful, you will then be able to register the proposed Business Name.

Alternatively, you may wish to consider submitting another business name for registration.

We will hold the proposed Business Name for a period of 28 days. If you intend to apply for Ministerial consent to use the undesirable name, you should apply during this time.

Submitting an application for consent

Information about undesirable names and how to apply for Ministerial consent is attached. If you wish to apply for Ministerial consent, please email your written application and supporting documentation to ASIC at bn.reviews@asic.gov.au.

Review rights

If you are not satisfied ASIC made the correct decision in refusing your application to register the proposed Business Name, you may seek a review of ASIC's decision. An application for review must be lodged in writing within 28 days of being notified of this decision. Please refer to www.asic.gov.au/bn-review for more information about the review process.

Requesting a refund

After the expiration of the 28-day review period, if you made a payment for the registration fee and you wish to request a refund, please submit your refund request at www.asic.gov.au/bn-payments.

If you have any queries regarding this letter, please contact us at bn.reviews@asic.gov.au.

Yours sincerely

A handwritten signature in black ink, appearing to read 'Shane Gunston', with a stylized flourish at the end.

Shane Gunston
Senior Manager, Service Delivery Support
Registry

Undesirable business names

Item 1 of Section 8(1) of the *Business Names Registration (Availability of Names) Determination 2015* (**the Names Determination**) provides that a business name is undesirable, and unavailable for registration, if the name, in the opinion of ASIC, is likely to be offensive to:

- (a) members of the public; or
- (b) members of any section of the public.

Certain senior officers of ASIC have been delegated the Minister's power to consent to the use of an undesirable name and the Treasury has approved guidelines for Ministerial consent (**the Guidelines**), setting out the procedures to be followed and the criteria to be applied by ASIC when considering applications for consent. A copy of the Guidelines can be found on ASIC's website at www.asic.gov.au.

Application for consent

To apply for Ministerial consent to the use of the proposed business name, your written application will need to provide reasons why consent is appropriate in your circumstances and **must demonstrate** (i.e. explain, give reasons, provide evidence) that there is no real likelihood that members of the public would be offended by the use of the name.

Submitting an application for consent

If you wish to apply for Ministerial consent, please email your written application and supporting documentation to ASIC at bn.reviews@asic.gov.au.